SUPREME COURT OF THE UNITED STATES

No. 25A1207

DANCO LABORATORIES, LLC *v.* LOUISIANA, ET AL.

ON APPLICATION FOR STAY

No. 25A1208

GENBIOPRO, INC. *v.* LOUISIANA, ET AL.

ON APPLICATION FOR STAY

[May 14, 2026]

The applications for stay presented to JUSTICE ALITO and by him referred to the Court are granted. The May 1, 2026 order of the United States Court of Appeals for the Fifth Circuit, case No. 26–30203, is stayed pending disposition of the appeal in the United States Court of Appeals for the Fifth Circuit and disposition of a petition for a writ of certiorari, if such a writ is timely sought. Should certiorari be denied, this stay shall terminate automatically. In the event certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court.

JUSTICE THOMAS, dissenting.

Applicants are manufacturers and distributors of mifepristone, a drug that is primarily designed to cause abortion. They complain that the Fifth Circuit's order would reduce profits they derive from selling mifepristone. I would deny their applications because they have not satisfied their burden for securing interim relief.

I write separately to note that, as Louisiana argued below, it is a criminal offense to ship mifepristone for use in abortions. The Comstock Act bans using "the mails" to ship

any "drug . . . for producing abortion." 18 U. S. C. §1461. A neighboring provision makes it a felony to use "any express company or other common carrier or interactive computer service" to ship "any drug . . . designed, adapted, or intended for producing abortion." §1462(c). Applicants "[s]hip mifepristone . . . to certified pharmacies," which, in turn, must "ship mifepristone using a shipping service" to users. FDA, Risk Evaluation and Mitigation Strategy (REMS) Single Shared System for Mifepristone 200 MG, pp. 3, 4 (Jan. 2023), https://www.accessdata.fda.gov/drugsatfda_docs/rems/Mifepristone_2023_01_03_REMS_Full.pdf (archived at https://perma.cc/T7D6-QZ5R). As relevant to this case, mifepristone shipped to Louisiana, which bans abortion, causes nearly 1,000 abortions per month. "All of this violates the Comstock Act." *Alliance for Hippocratic Medicine* v. *FDA*, 78 F. 4th 210, 268 (CA5 2023) (Ho, J., concurring in part and dissenting in part), rev'd on other grounds, 602 U. S. 367 (2024).

Applicants are not entitled to a stay of an adverse court order based on lost profits from their criminal enterprise. They cannot, in any legally relevant sense, be irreparably harmed by a court order that makes it more difficult for them to commit crimes. And, whereas it would "serve the public interest" to "reduc[e]" applicants' "opportunity to commit crimes," *Zedner* v. *United States*, 547 U. S. 489, 501 (2006), a stay would have the opposite effect.

I respectfully dissent.